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File No.: EXP202209803

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 1, 2022. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, ALBACETE, with indications of a possible violation of the provisions of Articles 5.1.c) and 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

The reasons supporting the complaint are as follows:

The complainant states that the respondent is responsible for an establishment that has a camera on its facade which, due to its orientation, is capable of capturing images of the public road, without any prior administrative authorization for doing so.

Images of the camera's location are provided.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 03/10/2022, as evidenced by the acknowledgment of receipt in the file.

The respondent has not responded to the forwarding action and request for information notified.

THIRD: On November 23, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On February 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violations of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified on March 7, 2023, in accordance with the rules established in the LPACAP, and the respondent submitted a written statement in which, in summary, stated that:

"I provide photographs, an invoice, and a registration receipt that did not arrive at the indicated email on 03-10-2022 (October 3, 2022). Corresponding to some false (imitation) video surveillance cameras reported by a neighbor believing that video images were being recorded. On that same day (03-10-2022), the Civil Guard patrol from Casas de Ves arrived at that installation and verified that they were indeed false cameras (they do not record video, nor audio, nor emit anything) as stated in the invoice.

The brand and model of the photograph provided match the invoice."

SIXTH: On September 8, 2023, a resolution proposal was made, which responded to the allegations raised and proposed the filing of the proceedings. No allegations have been presented against said proposal.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The complainant states that the respondent is responsible for an establishment that has a camera on its facade which, due to its orientation, is capable of capturing images of the public road,

without any prior administrative authorization for doing so. Images of the camera's location are provided.

SECOND: The respondent provides photographs and an invoice corresponding to some false (imitation) video surveillance cameras reported by a neighbor believing that video images were being recorded. On 03-10-2022, the Civil Guard patrol from Casas de Ves arrived at that installation and verified that they were indeed false cameras (they do not record video, nor audio, nor emit anything) as stated in the invoice. The brand and model of the photograph provided match the invoice.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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3/5

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

In response to the allegations presented by the defendant, the following should be noted:

Upon examining the allegations of the defendant, these allegations are accepted, as the defendant has proven (through photographs and an invoice for the camera) that the cameras in question are fake and do not record images or audio, therefore the informative sign would not be mandatory.

It can be concluded that we are faced with the impossibility of attributing an administrative infraction when it cannot be proven, through evidence, the existence of surveillance cameras that record images or audio, thus the case should be archived.

III

Presumption of Innocence

The principle of the presumption of innocence prevents the attribution of an administrative infraction when no incriminating evidence has been obtained and verified regarding the facts that motivate the accusation or the involvement of the alleged offender in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable way for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi*, in its various manifestations, is conditioned by the play of evidence and a contradictory procedure in which one's own positions can be defended. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal.

The presumption of innocence prevails without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TC 13/1981), as the exercise of the sanctioning right, in any of its manifestations, is conditioned by the play of evidence and a contradictory procedure in which one's own positions can be defended.

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4/5

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TC Auto 3-12-81).

IV

Conclusion

In accordance with the above, it cannot be proven that the surveillance cameras at the indicated location record images or audio, as they are fake.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been proven, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO ARCHIVE the present procedure initiated against B.B.B., with NIF ***NIF.1, for an infraction of the provisions of Articles 5.1.c) and 13 of the GDPR, both classified in Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also inform the Agency of the

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5/5

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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